

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LEONARD MATHEWS,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
TOOMA, Shield No. 24945, POLICE OFFICER DEREK
BERNARD, SHIELD NO. 21066, and POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Bronx
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 18, 2018

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DANIEL TOOMA, Shield No. 24945, 52nd Precinct, 3016 Webster
Ave, Bronx, NY 10467
POLICE OFFICER DEREK BERNARD, Shield No. 21066, 52nd Precinct, 3016 Webster
Ave, Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LEONARD MATHEWS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
TOOMA, Shield No. 24945, POLICE OFFICER DEREK
BERNARD, Shield No. 21066, and POLICE OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff LEONARD MATHEWS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 21, 2016, at approximately 1:00 a.m., plaintiff Leonard Mathews, while in the vicinity of Creston Avenue and Kingsbridge Avenue, Bronx, New York, was subject to an unlawful assault, battery, and use of excessive force by the defendant New York City police officers when they tackled and slammed plaintiff to the ground, pushed his face into the pavement, kned him in the head and back, and dragged him across the ground, causing profuse bleeding on plaintiff's face and severe pain and injuries. Plaintiff's injuries caused by the defendant officers required approximately 7 sutures in the face and other medical treatment at North Central Bronx Hospital. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully assaulted, battered, and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff LEONARD MATHEWS is a resident of the state of New York.

3. POLICE OFFICER DANIEL TOOMA, Shield No. 24945, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER DANIEL TOOMA, Shield No. 24945, is and was at all times relevant herein, assigned to 52nd Precinct.

5. POLICE OFFICER DANIEL TOOMA, Shield No. 24945, is being sued in his individual and official capacity.

6. POLICE OFFICER DEREK BERNARD, Shield No. 21066 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER DEREK BERNARD, Shield No. 21066, is and was at all times relevant herein, assigned to the 52nd Precinct.

8. POLICE OFFICER DEREK BERNARD, Shield No. 21066, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on March 27, 2017.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On October 21, 2016, at approximately 1:00 a.m., plaintiff was lawfully present in the vicinity of Creston Avenue and Kingsbridge Avenue, Bronx, New York.

19. No reasonable police officer would have believed it was necessary to use physical force against plaintiff at any time.

20. Suddenly, one of the defendant police officers drew his gun, pointed it at plaintiff, and began to approach plaintiff.

21. The defendant police officers grabbed plaintiff, threw him to the ground, pushed plaintiff's face into the ground and pushed their knees into the back of his head, causing plaintiff to bleed profusely from the face and experience extreme physical pain and injuries.

22. The defendant police officers then unlawfully handcuffed plaintiff.

23. At no point in time did plaintiff resist arrest in any way.

24. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer pain and discomfort.

25. Plaintiff told the defendant police officers that the handcuffs were hurting his wrists, and asked the defendant police officers to loosen the handcuffs, but the defendant police officers ignored plaintiff and failed to loosen the handcuffs.

26. The unreasonably tight handcuffs were the direct and proximate cause of the serious physical injuries to plaintiff's wrists.

27. The defendant police officers then dragged plaintiff along the ground while he was in handcuffs, causing further pain and injuries to plaintiff.

28. The assault, battery, and use of excessive force against plaintiff by the defendant police officers was the direct and proximate cause of plaintiff's injuries to face, wrists and head.

29. Plaintiff was subjected to excessive force by the individual defendant police officers without cause or legal justification.

30. Thereafter, EMS was called to the scene of the incident to treat plaintiff for the injuries inflicted by the defendant police officers.

31. Upon arrival, EMS determined that plaintiff's injuries required medical treatment at the hospital, and plaintiff was transported to North Central Bronx Hospital.

32. At North Central Bronx Hospital, plaintiff received 7 sutures on the left side of his face to close the laceration caused by the defendant police officers.

33. Plaintiff was then transported by the defendant police officers to the 52nd Precinct against his will, where he was photographed, searched, fingerprinted and then placed in a holding cell.

34. After several hours at the precinct, plaintiff was transported to Bronx County Central Booking and placed in a holding cell.

35. On October 21, 2016, at approximately 11:30 p.m., plaintiff was arraigned and released on his own recognizance.

36. On October 22, 2016, at approximately 11:00 p.m., plaintiff was forced to return to North Central Bronx Hospital for further medical treatment for injuries to his left wrist, which was swollen and painful due to the excessively tight handcuffs applied by the defendant police officers and the assault, battery, and use of excessive force against plaintiff by the defendant police officers.

37. On November 30, 2016, plaintiff was forced to return to North Central Bronx Hospital in order to have the stitches removed from the left side of his face.

38. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable assault, battery, and use of excessive force against plaintiff.

39. The unlawful assault, battery, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The use of excessive force by defendants by, amongst other things, by tackling and slamming plaintiff to the ground, pushing his face into the ground, pushing their knees into his head, and handcuffing plaintiff in an excessively tight manner, constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

42. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

Negligent Infliction of Emotional Distress

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Leonard Mathews. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

45. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Negligence

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. Defendants owed a duty of care to plaintiff.

52. To the extent defendants claim that the injuries to plaintiff's persons by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently handcuffing plaintiff in a excessively tight manner and dragging plaintiff across the ground while he was handcuffed.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

54. All of the foregoing occurred without any fault or provocation by plaintiff.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Assault

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Battery

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

66. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Leonard Mathews demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 18, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER DANIEL TOOMA, Shield No. 24945, 52nd Precinct, 3016 Webster Ave, Bronx, NY 10467
POLICE OFFICER DEREK BERNARD, Shield No. 21066, 52nd Precinct, 3016 Webster Ave, Bronx, NY 10467

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 18, 2018

/s/
STUART E. JACOBS